State of Wisconsin

WEC 27MAY2025 PM03:03

2025 Assembly Joint Resolution 10

ENROLLED JOINT RESOLUTION

To amend section 18 of article I of the constitution; **relating to:** the freedom to gather in places of worship during a state of emergency (second consideration).

Whereas, the 2023 legislature in regular session considered a proposed amendment to the constitution in 2023 Senate Joint Resolution 54, which became 2023 Enrolled Joint Resolution 11, and agreed to it by a majority of the members elected to each of the two houses, which proposed amendment reads as follows:

SECTION 1. Section 18 of article I of the constitution is amended to read:

[Article I] Section 18. The right of every person to worship Almighty God according to the dictates of conscience shall never be infringed; nor shall any person be compelled to attend, erect or support any place of worship, or to maintain any ministry, without consent; nor shall any control of, or interference with, the rights of conscience be permitted, or any preference be given by law to any religious establishments or modes of worship; nor shall any money be drawn from the treasury for the benefit of religious societies, or religious or theological seminaries; nor shall the state or a political subdivision of the state order the closure of or forbid gatherings in places of worship in response to a state of emergency at the national, state, or local level, including an emergency related to public health.

Now, therefore, be it resolved by the assembly, the senate concurring, That the foregoing proposed amendment to the constitution is agreed to by the 2025 legislature; and, be it further

Resolved, That the foregoing proposed amendment to the constitution be submitted to a vote

of the people at the election to be held on the first Tuesday of November 2026; and, be it further

Resolved, That the question concerning ratification of the foregoing proposed amendment to the constitution be stated on the ballot as follows:

QUESTION 1: "***Freedom to gather in places of worship during an emergency.*** Shall section 18 of article I of the constitution, which deals with religious liberty, be amended to prohibit the state or a political subdivision of the state from ordering the closure of, or forbidding gatherings in, places of worship in response to a state of emergency, including a public health emergency?"

Mary F. Felzkowski

Senator Mary Felzkowski
President of the Senate

Robin J. Vos

Representative Robin J. Vos
Speaker of the Assembly

January 23, 2026

Date

Edward A. Blazel
Assembly Chief Clerk